

Research question

What cases refer to RCW 59.18.650(6)(b) and how do they utilize this subsection in their decisions?

Expanded report • Washington

Summary

Washington state appellate courts have cited RCW 59.18.650(6)(b) in numerous cases since its enactment in 2021, consistently interpreting the provision to require landlords to provide notice with sufficient factual detail to enable tenants to "effectively rebut" the landlord's allegations. Courts apply a functional test focusing on whether tenants can understand and respond to the specific factual allegations rather than requiring rigid formal elements. The specificity requirements vary based on the type of eviction ground, with tenant misconduct cases requiring more detailed factual descriptions than owner-occupancy terminations. Courts strictly limit landlords to proving only the conduct specifically described in their notices, preventing reliance on broader patterns of behavior not originally included.

Statutory Framework and Purpose

RCW 59.18.650(6)(b) requires that all written notices under subsection (2) must "identify the facts and circumstances known and available to the landlord at the time of the issuance of the notice that support the cause or causes with enough specificity so as to enable the tenant to respond and prepare a defense to any incidents alleged."  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#) RCW 59.18.650 was enacted in 2021 as part of comprehensive tenant protection legislation that sought to protect residential tenants by limiting the reasons for eviction, refusal to continue, and termination. [Brewer v. Hill, 25 Wash.App.2d 844 \(2023\)](#)

The statute serves as a procedural safeguard within Washington's landlord-tenant framework, ensuring that tenants receive adequate information to defend against eviction proceedings. [Garrand v. Cornett, 31 Wash.App.2d 428 \(2024\)](#) The court in Kiemle & Hagood emphasized that the statute requires landlords to identify "facts and circumstances" with specificity, rather than legal causes of action, to enable tenants to understand the factual allegations and effectively rebut the landlord's conclusions.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#)

Judicial Interpretation and Application Standards

Washington courts have developed a functional test for evaluating notice adequacy under RCW 59.18.650(6)(b). In *Kiemle & Hagood Co. v. Daniels*, the Court of Appeals established that "the critical question here is whether the landlord's notice provided enough facts to allow Ms. Daniels to 'effectively rebut the conclusion reached' by K&H."

 [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#) The court emphasized that "the real question regarding notice is whether Ms. Daniels understood the factual allegations against her" and that the statute requires landlords to identify "facts and circumstances," rather than legal causes of action, with specificity.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#)

Courts apply different compliance standards depending on the aspect of the notice being evaluated. While Washington courts require landlords to strictly comply with timing and manner requirements of termination notices, substantial compliance is sufficient when it comes to form and content.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#) However, notices must still be "sufficiently particular and certain so as not to deceive or mislead." [Hill v. Huddleston, Not Reported in Pac. Rptr. \(2023\)](#)

The adequacy of notice presents a mixed question of law and fact, which courts review de novo.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#) [Maggie Properties, LLC v. Nolan, Not Reported in Pac. Rptr. \(2023\)](#) This standard allows appellate courts to independently evaluate whether a notice meets the statutory specificity requirements without deferring to trial court determinations.

Context-Specific Applications

Tenant Misconduct Cases

In cases involving alleged tenant misconduct, courts require detailed factual descriptions that enable meaningful defense preparation. In *Kiemle & Hagood Co. v. Daniels*, the court found adequate specificity in a notice regarding unsanitary conditions because it referenced six prior detailed notices documenting specific violations and explained that a follow-up inspection revealed continued non-compliance.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#) The court rejected the tenant's argument that the notice must identify specific victims of the alleged interference, reasoning that "the information supplied to Ms. Daniels made clear that K&H was relying on the generally unsanitary condition of her apartment, conduct that could plausibly impair others' enjoyment even when discrete victims are difficult to

identify."  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#)

Similarly, in *Maggie Props., LLC v. Nolan*, the court found sufficient specificity in a notice describing the tenant's "conduct and behavior" of "repeatedly sending lengthy harassing, abusive, and threatening text messages to landlord, which include hate speech, despite requests to cease such communications." [Maggie Properties, LLC v. Nolan, Not Reported in Pac. Rptr. \(2023\)](#) The court applied a functional test, noting that the tenant "admitted he texted" the landlord and "was able to, and did, prepare a cogent response" at the show cause hearing. [Maggie Properties, LLC v. Nolan, Not Reported in Pac. Rptr. \(2023\)](#)

Owner Occupancy Terminations

Courts apply more lenient specificity standards for owner-occupancy evictions under RCW 59.18.650(2)(d). In *Garrand v. Cornett*, the Court of Appeals held that the specificity requirement does not obligate landlords to disclose the identity of intended residents in owner-occupancy notices. [Garrand v. Cornett, 31 Wash.App.2d 428 \(2024\)](#) The court distinguished owner-occupancy cases from tenant misconduct cases, explaining that "unlike the myriad situations set forth in RCW 59.18.650(2) in which the termination of a lease is based on some alleged act or omission of the tenant, a termination under (2)(d) is self-explanatory." [Garrand v. Cornett, 31 Wash.App.2d 428 \(2024\)](#)

The court reasoned that "all that is necessary for a tenant to defend against this type of termination is the knowledge that the owner or an immediate family member intends to move into the unit." [Garrand v. Cornett, 31 Wash.App.2d 428 \(2024\)](#) In *Egbert v. Jorgensen*, the court applied this principle to uphold a notice stating that "Scott Egbert is the owner of the property and has been incarcerated and admitted to Western State Hospital. He has nowhere to live upon his release from incarceration. His release is imminent. His intent and plan is to move into his home as his permanent residence." [Egbert v. Jorgensen, 580 P.3d 1002 \(2025\)](#)

Evidentiary Limitations

Courts strictly enforce the principle that specificity requirements limit the scope of evidence landlords may present at trial. In *Key Property Services, Inc. v. Burnett*, the Court of Appeals held that "the 10-day notice identified only a single incident that occurred on March 25, 2023. Under RCW 59.18.650(2)(b) and (6)(b), this means that Key had to prove that what Burnett said to Guiel on March 25 – and no other acts – constituted a substantial breach of a material term of the lease." [Key Property Services, Inc. v. Burnett, Not Reported in Pac. Rptr. \(2025\)](#)

The court emphasized this limitation by noting that the landlord "could argue that Burnett's comments on March 25 combined with her prior actions were a substantial

breach of the lease," but because the landlord "did not include that conduct in its 10-day notice," it was limited to proving only the specifically identified incident. [Key Property Services, Inc. v. Burnett, Not Reported in Pac. Rptr. \(2025\)](#) This strict evidentiary limitation ultimately led the court to reverse the judgment, finding insufficient evidence to support the jury verdict based solely on the limited conduct described in the notice. [Key Property Services, Inc. v. Burnett, Not Reported in Pac. Rptr. \(2025\)](#)

Arguments and Rebuttals

Arguments for Strict Specificity Standards

1. Due Process Protection

- o The statute requires landlords to provide enough facts to allow tenants to "effectively rebut the conclusion reached" by landlords, as interpreted in Kiemle & Hagood.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#)
- o The statutory language requiring "enough specificity so as to enable the tenant to respond and prepare a defense" establishes a clear legislative intent to protect tenant due process rights.  [Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 \(2023\)](#)

Anticipated Rebuttals

- o Landlords may argue that excessive specificity requirements create operational burdens and delay legitimate evictions, particularly when tenant misconduct is ongoing or escalating.

2. Evidentiary Consistency

- o The *Key Property Services* decision demonstrates that specificity requirements prevent landlords from expanding their case beyond what was originally noticed, ensuring consistency between the termination ground and the evidence presented at trial. [Key Property Services, Inc. v. Burnett, Not Reported in Pac. Rptr. \(2025\)](#)
- o Limiting evidence to specifically described conduct prevents landlords from using conclusory allegations as placeholders for broader misconduct patterns discovered later.

Anticipated Rebuttals

- o Landlords may contend that rigid evidentiary limitations prevent them from presenting the full context of tenant behavior patterns that justify termination.

3. Statutory Text Enforcement

- o The court in *Kiemle & Hagood* emphasized that the statute requires identification of "facts and circumstances" rather than legal causes of action.  [*Kiemle & Hagood Company v. Daniels*, 26 Wash.App.2d 199 \(2023\)](#)

Anticipated Rebuttals

- o Landlords may argue that functional compliance should be sufficient when tenants demonstrably understand the allegations, regardless of technical specificity defects.

Arguments for Flexible Application Standards

1. Contextual Reasonableness

- o Different eviction grounds inherently require different levels of detail, as recognized in *Garrand v. Cornett* where owner-occupancy cases were deemed "self-explanatory" compared to tenant misconduct allegations. [*Garrand v. Cornett*, 31 Wash.App.2d 428 \(2024\)](#)
- o Courts should focus on whether tenants can functionally respond rather than requiring uniform specificity across all termination types.

Anticipated Rebuttals

- o Tenant advocates may argue that the statutory language applies uniformly to "all written notices" under subsection (2) without creating exceptions for particular termination grounds.

2. Practical Functionality

- o The *Maggie Props* decision shows that notice adequacy should be measured by the tenant's actual ability to respond, not by technical compliance with formal requirements like specific dates or witness names. [*Maggie Properties, LLC v. Nolan*, Not Reported in Pac. Rptr. \(2023\)](#)
- o Substantial compliance standards for form and content should prevent technical defects from invalidating otherwise clear and understandable notices.

Anticipated Rebuttals

- Tenants may argue that without specific factual details, they cannot adequately investigate and rebut landlord allegations, particularly in complex misconduct cases.

3. Landlord Operational Needs

- Excessive specificity requirements may prevent landlords from addressing ongoing tenant problems promptly, potentially compromising property safety and other tenants' quiet enjoyment.
- Courts should balance tenant due process rights against legitimate property management needs and public safety concerns.

Anticipated Rebuttals

- Tenant advocates may contend that proper notice requirements actually improve landlord documentation practices and reduce frivolous eviction attempts.

Cases on Both Sides

The following cases were identified as relevant to your legal issue. To review more cases on both sides, see the "Cases on Both Sides" section below.

Cases Requiring Detailed Specificity	Cases Applying Flexible Standards
Key Property Services, Inc. v. Burnett, Not Reported in Pac. Rptr. (2025) — The court reversed a jury verdict because the landlord's notice identified only a single incident, strictly limiting the evidence to that specific conduct and preventing reliance on broader behavior patterns. The court held that specificity requirements create absolute evidentiary boundaries that landlords cannot exceed at trial.	Garrand v. Cornett, 31 Wash.App.2d 428 (2024) — The court held that owner-occupancy notices do not require identification of specific family members because such terminations are "self-explanatory" and distinct from tenant misconduct cases. The court emphasized that different eviction grounds inherently require different levels of specificity based on their underlying nature.
 Kiemle & Hagood Company v. Daniels, 26 Wash.App.2d 199 (2023) — The court established that notices must	Maggie Properties, LLC v. Nolan, Not Reported in Pac. Rptr. (2023) — The court found sufficient specificity in a notice describing harassing text

provide enough facts for tenants to "effectively rebut the conclusion reached" by landlords, requiring substantial factual detail rather than conclusory allegations. The court found adequacy only because the notice incorporated extensive prior documentation of specific violations and follow-up inspection results.

messages without requiring specific dates, times, or witness names, focusing instead on the tenant's demonstrated ability to respond and defend. The court rejected rigid formal requirements in favor of functional adequacy standards.

Practical Implications

Landlords must carefully balance providing sufficient factual detail to satisfy specificity requirements while avoiding over-specification that could limit their evidence at trial. The evidentiary limitation established in *Key Property Services* creates particular challenges, as landlords cannot rely on misconduct patterns beyond what is specifically described in their initial notices. This requires landlords to conduct thorough investigations before issuing termination notices and to document all relevant conduct they intend to prove.

Notice drafting strategies must vary by eviction type, with tenant misconduct cases requiring detailed factual descriptions including specific incidents, dates, and circumstances, while owner-occupancy cases need only basic information about intent and circumstances. Landlords should reference prior violation notices when available and document follow-up inspections or investigations to establish sufficient factual foundations.

The functional test for notice adequacy creates both opportunities and risks for both parties. Tenants can challenge notices based on their actual inability to respond meaningfully, while landlords may defend technically imperfect notices by demonstrating tenant understanding. However, inadequate notice specificity can lead to failed evictions requiring new notice periods and delaying possession recovery, creating significant cost and timing implications for property management.

Recent Developments

RCW 59.18.650(6)(b) represents a significant 2021 legislative amendment to Washington's Residential Landlord-Tenant Act, effective May 10, 2021, requiring specificity for all notices under subsection (2). The provision emerged from comprehensive tenant protection legislation that sought to protect residential tenants by limiting the reasons for eviction, refusal to continue, and termination. [Brewer v. Hill, 25 Wash.App.2d 844 \(2023\)](#)

Since 2023, Washington appellate courts have rapidly developed interpretation standards for this new requirement. *Kiemle & Hagood Co. v. Daniels*, decided in April 2023, became the first published appellate decision to interpret the specificity requirements, establishing the functional test that subsequent courts have adopted.  [*Kiemle & Hagood Company v. Daniels*, 26 Wash.App.2d 199 \(2023\)](#) The case law has evolved quickly, with significant decisions in *Garrand v. Cornett* (2024) and *Key Property Services* (2025) further refining the application standards. [*Garrand v. Cornett*, 31 Wash.App.2d 428 \(2024\)](#) [*Key Property Services, Inc. v. Burnett*, Not Reported in Pac. Rptr. \(2025\)](#)

Recent cases demonstrate courts moving away from rigid formalistic requirements toward functional tests focusing on tenant comprehension and response capability. The 2024-2025 decisions in *Garrand* and *Egbert* specifically clarified that owner-occupancy notice requirements are less stringent than tenant misconduct cases, creating a context-dependent framework for specificity evaluation. [*Garrand v. Cornett*, 31 Wash.App.2d 428 \(2024\)](#) [*Egbert v. Jorgensen*, 580 P.3d 1002 \(2025\)](#)

The 2025 *Key Property Services* decision established the most significant limitation on landlord evidence, creating strict boundaries that prevent reliance on conduct not specifically described in termination notices. [*Key Property Services, Inc. v. Burnett*, Not Reported in Pac. Rptr. \(2025\)](#) This development suggests courts are taking an increasingly protective approach to tenant due process rights under the new statutory framework.

Related Issues

- **Service of Process Requirements** - RCW 59.12.040 service requirements are frequently litigated alongside notice content issues, as proper service is a prerequisite to valid termination regardless of notice adequacy
- **Good Faith Requirements** - Whether landlord notices are issued in good faith, particularly in owner-occupancy cases where courts must evaluate the sincerity of stated intent to occupy
- **Reasonable Accommodation Claims** - Disability accommodation defenses often arise when tenants challenge eviction notice adequacy, requiring courts to balance specificity requirements with accommodation obligations
- **Substantial vs. Material Breach Standards** - Determining what constitutes sufficient breach to justify eviction under RCW 59.18.650(2)(b), particularly when notices describe conduct of questionable severity

Generated by AI. Not legal advice. A qualified professional must verify accuracy and legal compliance.

Sources (10)

-  **Kiemle & Hagood Company v. Daniels**
Court of Appeals of Washington, Division 3. • April 27, 2023 • 26 Wash.App.2d 199 • 528 P.3d 834

AI document summary

Establishing the functional test for notice adequacy requiring landlords to provide facts enabling tenants to "effectively rebut" allegations

Supporting section 1 of 6

...In terms of substance, RCW 59.18.650(6)(b) requires any notice under subsection (2) of the statute to "[i]dentify the facts and circumstances known and available to the landlord... that support the cause or causes with enough specificity so as to enable the tenant to respond and prepare a defense to any incidents alleged." (Emphasis added.)...

Supporting section 2 of 6

...The critical question here is whether the landlord's notice provided enough facts to allow Ms. Daniels to "effectively rebut the conclusion reached" by K&H....

Supporting section 3 of 6

...Moreover, the real question regarding notice is whether Ms. Daniels understood the factual allegations against her. See Tacoma Rescue Mission v. Stewart, 155 Wash. App. 250, 255, 228 P.3d 1289 (2010); see also RCW 59.18.650(6)(b) (requiring landlords to "[i]dentify... facts and circumstances," rather than legal causes of action, with "specificity" (emphasis added))....

Supporting section 4 of 6

...Washington courts require landlords to strictly comply with timing and manner requirements of notice. Id. at 818, 319 P.3d 61. But when it comes to form and content, substantial compliance is sufficient....

Supporting section 5 of 6

...¶35 A challenge to the adequacy of notice presents a mixed question of law and fact, reviewed de novo. Hall, 178 Wash. App. at 819, 319 P.3d 61....

Supporting section 6 of 6

...But here, the information supplied to Ms. Daniels made clear that K&H was relying on the generally unsanitary condition of her apartment, conduct that could plausibly impair others' enjoyment even when discrete victims are difficult to identify....

2. [Brewer v. Hill](#)

Court of Appeals of Washington, Division 2. • March 14, 2023 • 25 Wash.App.2d 844 • 525 P.3d 987

AI document summary

Recognizing that RCW 59.18.650 was enacted to "protect residential tenants by limiting the reasons for eviction, refusal to continue, and termination"

3. [Garrand v. Cornett](#)

Court of Appeals of Washington, Division 2. • June 11, 2024 • 31 Wash.App.2d 428 • 550 P.3d 64

AI document summary

Holding that specificity requirements do not obligate landlords to disclose identity of intended residents in owner-occupancy notices

Supporting section 1 of 2

...However, Cornett's central claim that tenants need to be able to discover whether an owner is lying about their intention to either occupy or have an immediate family member occupy the unit does not bear on the sufficiency of the notice. Unlike the myriad situations set forth in RCW 59.18.650(2) in which the termination of a lease is based on some alleged act or omission of the tenant, a termination under (2)(d) is self-explanatory. If the legislature felt that identification of the actual family member is required for a termination notice to

Supporting section 2 of 2

...¶37 Assuming without deciding that RCW 59.18.650(6)(b) applies to termination notices governed by RCW 59.18.650(2)(d),⁴ we hold that the specificity requirement in (6)(b) does not obligate a landlord to disclose the identity of the intended resident in their termination notices issued under (2)(d). In our view, all that is necessary for a tenant to defend against this type of termination is the knowledge that the owner or an immediate family member intends to move into the unit, which the notice in this case did when it advised Cornett that

4. [Hill v. Huddleston](#)

Court of Appeals of Washington, Division 2. • November 07, 2023 • Not Reported in Pac. Rptr. • 28 Wash.App.2d 1050

AI document summary

Stating that notices must be "sufficiently particular and certain so as not to deceive or mislead"

5. Maggie Properties, LLC v. Nolan

Court of Appeals of Washington, Division 1. • December 04, 2023 • Not Reported in Pac. Rptr. • 28 Wash.App.2d 1070

AI document summary

Applying functional test to find adequate specificity in harassment notice without requiring formal elements like specific dates

Supporting section 1 of 2

...“A challenge to the adequacy of notice presents a mixed question of law and fact, which we review de novo.” [Hall v. Feigenbaum, 178 Wn....

Supporting section 2 of 2

...Discussion The landlord's notice stated, “Your tenancy is being terminated in accordance with RCW 59.18.650(2)(c), which provides a month-to-month tenancy may be terminated upon 3 days’ notice where... substantial or repeated and unreasonable interference with the use and enjoyment of the premises by... the landlord.” The notice attached an explanation of the “facts and circumstances” of that interference, specifically citing his “conduct and behavior” of “repeatedly sending lengthy harassing, abusive, and threatening text messages to landlord,

6. Egbert v. Jorgensen

Court of Appeals of Washington, Division 2. • December 09, 2025 • 580 P.3d 1002 • 2025 WL 3524961

AI document summary

Applying lenient specificity standards to owner-occupancy notices describing landlord's need for housing after incarceration

Supporting section 1 of 1

...The notice stated, > There is no substantially equivalent unit available in the same building. Scott Egbert is the owner of the property and has been incarcerated and admitted to Western State Hospital. He has nowhere to live upon his release from incarceration. His release is imminent. His intent and plan is to move into his home as his permanent residence....

7. Key Property Services, Inc. v. Burnett

Court of Appeals of Washington, Division 2. • May 13, 2025 • Not Reported in Pac. Rptr. • 34 Wash.App.2d 1044

AI document summary

Establishing that specificity requirements strictly limit landlords to proving only conduct specifically described in notices

Supporting section 1 of 3

...Analysis Here, the 10-day notice identified only a single incident that occurred on March 25, 2023. Under RCW 59.18.650(2)(b) and (6)(b), this means that Key had to prove that what Burnett said to Guiel on March 25 – and no other acts – constituted a substantial breach of a material term of the lease....

Supporting section 2 of 3

...If Burnett's prior conduct could be considered, it is possible that Key could argue that Burnett's comments on March 25 combined with her prior actions were a substantial breach of the lease. Key could argue that she had engaged in harassment of other residents for an extended period of time. But Key did not include that conduct in its 10-day notice. Instead, Key relied solely on the March 25 comments....

Supporting section 3 of 3

...Accordingly, we hold that there was insufficient evidence to support the jury verdict and the trial court's judgment must be reversed....

Additional sources

These sources are not cited in your report, but can provide context that may be helpful.

8. [2025 Labor & Employment Law Developments Tracker](#)

Practice Note • Law stated as of 31-Dec-2025 • California

Practical Law resource summary

A Practice Note tracking key US labor and employment law developments, including federal and state court decisions, laws, regulations, and administrative agency guidance decided, enacted, or issued in 2025. The developments tracked here relate to all areas of employment law, excluding traditional labor law and immigration law, which are tracked in separate resources. For summaries of new laws and regulations organized by the effective dates of those developments, see Labor & Employment New Laws Effective Date Tracker. For key US immigration developments

9. [Compelling and Staying Arbitration in Washington](#)

Practice Note • **Maintained** • National/Federal

Practical Law resource summary

A Practice Note explaining how to request judicial assistance in Washington state

court to compel or stay arbitration. This Note describes the issues counsel should consider before seeking judicial assistance and explains the steps counsel must take to obtain a court order compelling or staying arbitration in Washington state court.

10. [2026 Labor & Employment Law Developments Tracker](#)

Practice Note • **Maintained** • Maine

Practical Law resource summary

A Practice Note tracking key US labor and employment law developments, including federal and state court decisions, laws, regulations, and administrative agency guidance decided, enacted, or issued in 2026. The developments tracked here relate to all areas of employment law, excluding traditional labor law and immigration law, which are tracked in separate resources. For summaries of new laws and regulations organized by the effective dates of those developments, see Labor & Employment New Laws Effective Date Tracker. For key US immigration developments

Research Steps

- ✓ Researching Washington state court cases that specifically cite RCW 59.18.650(6)(b) in their opinions and holdings
 - Found multiple Washington appellate cases citing RCW 59.18.650(6)(b): Kiemle & Hagood Co. v. Daniels (2023), Garrand v. Cornett (2024), Maggie Props v. Nolan (2023), and several others. Cases establish that the provision requires landlords to identify facts and circumstances with enough specificity to enable tenant response and defense preparation.
- ✓ Analyzing how Washington courts interpret and apply RCW 59.18.650(6)(b) in their judicial reasoning and decision-making
 - Courts interpret RCW 59.18.650(6)(b) using a functional test - notices must provide enough facts for tenants to "effectively rebut" landlord allegations. Courts apply substantial compliance standard for form/content but strict compliance for timing/manner. The specificity required varies by eviction type - tenant misconduct cases require more detail than owner occupancy.
- ✓ Examining the factual contexts and legal disputes in which Washington courts have invoked RCW 59.18.650(6)(b) as authority

- o Courts have invoked RCW 59.18.650(6)(b) in diverse factual contexts: unsanitary conditions (Kiemle), harassment via text messages (Maggie Props), owner occupancy (Garland, Egbert), lease violations (Key Property Services), and criminal conduct (Housing Auth cases). Each context requires different levels of specificity based on the nature of the alleged violation.
- ✓ Identifying any trends or patterns in how Washington courts utilize RCW 59.18.650(6)(b) across different types of landlord-tenant disputes
 - o Courts consistently apply a functional test for notice adequacy, with three key patterns: (1) tenant misconduct cases require detailed factual descriptions, (2) owner occupancy cases require minimal specificity about intent and circumstances, and (3) all cases limit landlords to proving only conduct specifically described in notices. Courts prioritize tenant's ability to understand and respond over formal requirements.

Questions for further research

1. **What specific type of eviction notice are you dealing with (nonpayment, lease violation, nuisance, owner occupancy, etc.)?**
2. **What factual details were included in the termination notice you received or are preparing to serve?**
3. **Has there been any prior correspondence or notices between the landlord and tenant regarding the issues mentioned in the termination notice?**
4. **What specific tenant conduct or circumstances does the landlord claim as grounds for termination?**
5. **Do you have documentation showing when the notice was served and how it was delivered to the tenant?**